

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

**2025PRTR039181: IN RE THE LEONE M RIECK REVOCABLE TRUST AGREEMENT
DTD FEBRUARY 24, 2017, AS AMENDED ON SEPTEMBER 28, 2018**

06/25/2026 in Department J6

**Motion to Compel Responses to Special Interrogatories Set 2, Request for Production Set 2,
Request for Sanctions**

The Court intends to grant the motion. The Court will order \$3,019 in monetary sanctions payable by Respondent John Swanson and his attorneys, jointly and severally.

The Court notes that the untimely opposition to the motion filed on 4/28/26 by Attorneys Nadeen Farra and Madison Spach, Jr. contains citations to cases that do not exist. For example, the Opposition says on page 5: "Discovery must be relevant to the subject matter involved in the pending action and is not a license for "fishing expeditions." (*Donovan v. Superior Court* (1983) 140 Cal.App.3d 729, 733.)" On Westlaw, the citation 140 Cal.App.3d 729 brings up *People v. Justin* (1983) 140 Cal.App.3d 729 involving a criminal case. Page 733 of People v. Justin does not include any passage supporting the assertion "[d]iscovery must be relevant to the subject matter involved in the pending action and is not a license for "fishing expeditions."

The Opposition also contains quotations or law attributed to cases that do not appear to contain the quotations or law. The Opposition states on page 6: " 'Discovery statutes are intended to encourage informal resolution of disputes and to avoid unnecessary motion practice[,] ' " citing *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439. Page 1439 of *Townsend* does not contain this quote. Nor does it appear that such a quote is contained anywhere in that decision.

The Opposition also says on page 7: "The discovery process requires serious, good faith efforts to resolve disputes informally before resorting to the courts." *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431." While *Obregon* is a real case, the quoted passage does not appear on page 431.

While the case *Estate of Cairns* (2010) 188 Cal.App.4th 937 does exist, the opinion does not appear to state any law in support of the principle it is cited for, namely that "[d]iscovery in probate proceedings is governed by the Civil Discovery Act but remains subject to relevance and proportionality limitations." (Opp., p. 4.)

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Ms. Spach, Jr., and Nadeen Farra are to serve and file declarations explaining the foregoing citation and quotes.